

Defendant also demurred to the second and third causes of action but given both causes of action will be stricken as discussed below, the court does not reach Defendant's arguments regarding the demurrer as to these causes of action.

Motion to Strike

A party given leave to amend following a demurrer is only authorized to amend as permitted by the court ruling. (*Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1022-1023.)

Here, the court's November 10, 2025 order sustaining Defendant's demurrer to Plaintiff's original complaint with leave to amend did not permit the addition of new causes of action. (See ROA 31.) The court's ruling permitting leave to amend was limited to the causes of action alleged in the initial complaint. (*Ibid.*) The FAC filed with the court now asserts an additional cause of action for breach of implied promise/promissory estoppel. The FAC thus asserts a new cause of action that is not within the scope of the court's prior order granting leave to amend. The FAC served on Defendant also includes an additional cause of action for negligent infliction of emotional distress, which also exceeds the scope of the court's prior order.

Accordingly, Defendant's motion to strike the second and third causes of action is **GRANTED without leave to amend**.

The court declined to consider the untimely oppositions pursuant to CRC 3.1300(d).

The court continues the CMC to 9/28/26 at 8:45am.

Defendant shall give notice.

305	<i>Tung vs. Purcell</i>	Before the Court are a Demurrer and Motion to Strike filed by defendants Byron Michael Purcell and Ivie McNeill Wyatt Purcell & Diggs as to the Complaint filed by plaintiff Derek C. Tung. The Demurrer is SUSTAINED as to the 1st and 3rd-6th causes of action and OVERRULED as to the 2nd cause of action. The Motion to Strike is GRANTED and DENIED, in part, as set forth herein. Plaintiff has leave to file a first amended complaint by 6/12/26. <u>Demurrer</u> <u>1st Cause of Action: Breach of Contract</u> – This claim is not sufficiently pled. (<i>Richman v. Hartley</i> (2014) 224 Cal.App.4th 1182, 1186.) Terms of written contract are not set out verbatim and written agreement is not attached. (<i>Harris v. Rudin, Richman & Appel</i> (1999) 74 Cal.App.4th 299, 307.) The demurrer is sustained on this cause of action. <u>2nd Cause of Action: Breach of Fiduciary Duty</u> – This cause of action is distinct from the legal malpractice claim in that plaintiff alleges actions taken “for their financial gain.” (Complaint ¶31) (<i>Stanley v. Richmond</i> (1995) 35 Cal.App.4th 1070, 1086 [“a breach of fiduciary duty is a species of tort distinct from a cause of action for professional negligence”].) The demurrer is overruled on this cause of action. <u>3rd Cause of Action: Gross Negligence</u> – “California does not recognize a distinct common law cause of action for gross negligence apart from negligence.” (<i>Jimenez v. 24 Hour Fitness USA, Inc.</i> (2015) 237 Cal.App.4th 546, 552, fn.3) Further, this cause of action is duplicative of the 7th cause of action for
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